

25STCP03640 25STCP03640

County: los-angeles

Division: Civil Law and Motion

Department: 834

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Case Number: 25STCP03640 Hearing Date: July 21, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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JASMINE MARTIN,

Petitioner(s),

vs.

DEPARTMENT
OF MOTOR VEHICLES,

Respondent(s).

Case No.:

25STCP03640

Hearing Date:

July 21, 2026

[TENTATIVE] RULING

ON PETITION FOR WRIT OF MANDATE

Petitioner Jasmine Martin ("Petitioner")

petitions for a writ of administrative mandate against Respondent Department of Motor Vehicles ("Respondent") directing it to set aside its decision to suspend her driver license.

The petition for writ of mandate
is denied.

I.

Factual Background

On May 27, 2025, Petitioner was involved in an accident with Jaramie Noel Olson ("Olson"). (AR 11, 48-49.)

Olson submitted to Respondent a Report of Traffic Accident Occurring in California, DMV Form SR 1 ("Accident Report"). (AR 11, 48-49.) According to the Accident Report, Olson sustained damages of over \$1,000 in damages to his vehicle and Petitioner and her three-year-old sustained injuries. (AR 11, 48-49.) The Accident Report further indicated Petitioner had no insurance coverage. (AR 11, 48-49.)

Respondent suspended Petitioner's license for failure to have insurance at the time of an accident resulting in over \$1,000 of damage. (AR 7.)

On July 21, 2025, Respondent granted Petitioner's request for a hearing and stayed the suspension. (AR 7, 42.) That day and the next, Respondent provided Petitioner with "discovery in compliance with § 11507.6 of the Government Code," including Petitioner's driving record printout, a notice of hearing, and the Accident Report. (AR 50, 56.) Respondent advised Petitioner that it would call Olson to testify. (AR 56.) The notice of hearing indicated the hearing would take place remotely on August 12, 2025. (AR 51-52.) The notice advised Petitioner she may represent herself or be represented by counsel, and that she would be allowed to present evidence, respond to evidence, examine witnesses, and present rebuttal evidence. (AR 51-52.)

On July 22, 2025, Respondent also issued Olson a subpoena and document production requests for "any and all records pertaining to the diagnosis of

injury, or medical bills for injury and/or repair estimates or bills for damage allegedly sustained as a result of an accident which occurred on May 27, 2025.” (AR 44-46.)

On August 12, 2025, Hearing Officer Cecilia Tijero (“Hearing Officer”) heard Petitioner’s case. (AR 16-38.) Petitioner represented herself. (AR 16-38.) Olson was present and offered testimony. (AR 16, 20-32.)

During the hearing, the Hearing Officer identified Respondent’s exhibits 1 and 2: (1) Petitioner’s driving record print-out (AR 6-9), and (2) the Accident Report (AR 48-49). (AR 20-22.) Petitioner indicated she had no objections, and the Hearing Officer entered the exhibits into evidence. (AR 20-22.) Olson presented a May 28, 2025 estimate from Longo Toyota, a facility approved by his insurance, showing \$2,306.17 in damage to his vehicle (“Estimate”). (AR 13, 14, 22-26.) Petitioner expressed no objection, and the Hearing Officer entered the Estimate into evidence. (AR 25.)

At the hearing, Petitioner acknowledged she was uninsured at the time of the accident. (AR 34.)

On August 13, 2025, Hearing Officer issued her hearing report and notice of findings and decision (collectively, “Decision”). (AR 2-5.) The Hearing Officer reimposed a one-year suspension, effective September 16, 2025, on the basis that Petitioner “failed to provide any type of financial responsibility or insurance for the vehicle involved in the accident.” (AR 2, 5.)

On or about September 12, 2025, Petitioner requested a departmental review. (AR 40.)

II.

Procedural History

On September 22, 2025, Petitioner filed this petition. A proof of service filed November 27, 2025 shows Petitioner served the petition on Respondent by personal service on October 15, 2025. On March 5, 2026, Respondent filed its answer to the petition.

On November 21, 2025, the Court denied Petitioner's ex parte application for a stay and expedited hearing. On December 4, 2025, the Court granted petitioner's ex parte application for a temporary stay of her license suspension.

On December 4, 2025, the Court granted Petitioner's ex parte application to stay the suspension of her driver license.

On April 3, 2026, Petitioner filed her opening brief. On May 26, 2026, Respondent filed its opposition. On June 30, 2026, Petitioner filed her reply.

III.

Standard of Review

Code of Civil Procedure ("CCP") section 1094.5 is the administrative mandamus provision that structures the procedure for judicial review of adjudicatory decisions rendered by administrative agencies. (*Topanga Ass'n for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 514-15) ["*Topanga*"].) Section 1094.5 does not specify which cases are subject to independent review, leaving that issue to the courts. (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 811 ["*Fukuda*"].) In cases reviewing decisions that affect a vested, fundamental right, the trial court exercises independent judgment on the evidence. (*Bixby v. Pierno* (1971) 4 Cal.3d 130, 143 ["*Bixby*"]; see CCP § 1094.5(c).)

While driving is a privilege, not a right, suspension or revocation of a driver license is a fundamental right for purposes of judicial review and requires application of the independent judgment test. (*Berlinghieri v. Department of Motor Vehicles* (1983) 33 Cal.3d 392, 398.) Under the independent judgment test, "the trial court not only examines the administrative record for errors of law but also exercises its independent judgment upon the evidence disclosed in a limited trial de novo." (*Id.* at 143.) The court must draw its own reasonable inferences from the evidence and make its own credibility determinations. (*Morrison v. Housing Authority of the City of Los Angeles Board of Commissioners* (2003) 107 Cal.App.4th 860, 868.) In short, the court substitutes its judgment for the agency's regarding the basic facts of what happened, when and why, and the credibility of witnesses. (*Guymon v. Board of Accountancy* (1976) 55

Cal.App.3d 1010, 1013-16.)

"In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence." (Fukuda, supra, 20 Cal.4th at 817.) Unless it can be demonstrated by petitioner that the agency's actions are not grounded upon any reasonable basis in law or any substantial basis in fact, the courts should not interfere with the agency's discretion or substitute their wisdom for that of the agency. (Bixby, supra, 4 Cal.3d at 150-151; Bank of America v. State Water Resources Control Board (1974) 42 Cal. App.3d 198, 208.)

Where the issue is whether a fair administrative hearing was conducted, a petitioner is entitled to an independent judicial determination of the issue. (Sinaiko v. Superior Court (2004) 122 Cal.App.4th 1133, 1141; Pomona Valley Hospital Medical Center v. Superior Court (1997) 55 Cal.App.4th 93, 101.) Therefore, the court must independently review the fairness of the administrative proceedings as a legal issue. (Rosenblit v. Superior Court, (1991) 231 Cal.App.3d 1434, 1438.)

The agency's decision must be based on a preponderance of the evidence presented at the hearing. (Board of Medical Quality Assurance v. Superior Court, (1977) 73 Cal.App.3d 860, 862.) The hearing officer is only required to issue findings that give enough explanation so that parties may determine whether, and upon what basis, to review the decision. (Topanga, supra, 11 Cal.3d at 514-15.) Implicit in CCP section 1094.5 is a requirement that the agency set forth findings to bridge the analytic gap between the raw evidence and ultimate decision or order. (Id. at 515.)

An agency is presumed to have regularly performed its official duties (Evid. Code § 664), and the petitioner therefore has the burden of proof on mandamus. (Steele v. Los Angeles County Civil Service Commission (1958) 166 Cal.App.2d 129, 137.) "[T]he burden of proof falls upon the party attacking the administrative decision to demonstrate wherein the proceedings were unfair, in excess of jurisdiction or showed prejudicial abuse of discretion." (Alford v. Pierno, (1972) 27 Cal.App.3d 682, 691.)

IV.

Analysis

Petitioner seeks administrative

mandamus to set aside Respondent's decision to suspend her license, raising two core issues: [1]

(1) Respondent did not proceed in the manner required by law; and (2) Respondent's finding that Olson sustained over \$1,000 in damage to his vehicle is not supported by the evidence.

Vehicle Code [2]

section 16020(a) states that drivers and owners of a motor vehicle "shall at all times be able to establish financial responsibility pursuant to Section 16021, and shall at all times carry in the vehicle evidence of the form of financial responsibility in effect for the vehicle." (§ 16020(a).)

Section 16000(a) provides, in

relevant part, that the "driver of a motor vehicle who is in any manner involved in an accident originating from the operation of the motor vehicle on a street or highway...that has resulted in damage to the property of any one person in excess of one thousand dollars (\$1,000), or in bodily injury,...shall report the accident, within 10 days after the accident" (§ 16000(a).) Whenever a driver involved in an accident described in section 16000 fails to provide evidence of financial responsibility at the time of the accident as required by section 16020, the DMV shall suspend the privilege of the driver to drive a motor vehicle. (§ 16070(a).)

1.

Respondent Proceeded in the Manner Required by
Law

Petitioner argues Respondent did

not proceed in the manner required by law because it did not disclose the Estimate to her in advance of the hearing, and did not give her an opportunity to review the Estimate and object to its admission at the hearing. Therefore, Petitioner contends, Respondent failed to comply with Government Code section 11507.6.

Under Government Code section

11507.6, Petitioner may make a written request to Respondent for certain categories of evidence prior to the hearing and within 30 days after service by the agency of the initial pleading or within 15 days after service of any additional pleading. (Gov. Code § 11507.6.) Petitioner would then be entitled to “inspect and make a copy” of certain categories of evidence “in the possession or custody or under the control of” Respondent, including “a statement pertaining to the subject matter of the proceeding made by any party to another party or person,” “all writings . . . and things on which the party then proposes to offer in evidence,” and “any other writing or thing which is relevant and which would be admissible in evidence.” (Gov. Code § 11507.6.)

In opposition, Respondent argues that, at the time of compliance with Government Code section 11507.6, it was not in possession of the Estimate. Respondent points out that it provided Petitioner with the documents it had in its custody and control, which, at the time of the disclosure, did not include the Estimate later provided by Olsen. (Opp., pp. 9-10; AR 022-025.) Petitioner does not address this argument in her reply. (See generally Reply.)

On July 21 and 22, 2025, Respondent made disclosures pursuant to Government Code section 11507.6. (AR 50-56.) On July 22, 2025, Respondent subpoenaed Olson and requested documents. (AR 44-45.) It is not clear from the record exactly when Respondent obtained possession, custody, or control of the Estimate (though it may have been August 6 [see AR 24]). Importantly, Petitioner does not argue, let alone show, that Respondent had the Estimate before making its Government Code section 11507.6 disclosures. Without evidence that Respondent possessed the Estimate at the time those disclosures were required, Petitioner cannot establish a violation of Government Code section 11507.6.

Accordingly, Petitioner has not met her burden to show Respondent did not proceed in the manner required by law. [3]

2.

The Weight of the Evidence Supports the Hearing Officer's Findings

Petitioner argues that the Hearing Officer's findings, specifically the finding that Olson suffered over

\$1,000 in property damage, were not supported by the weight of the evidence. Petitioner approaches the argument in several different ways, but each amounts to the same legal position: the Estimate is not reliable evidence as to the amount of the damage to Olson's vehicle. (See Pet. Op. Br. at 5-10.)

Petitioner argues that the Decision "treats the [Estimate] as establishing the amount of damage incurred." (Pet. Op. Br. at 6.) Petitioner contends that the estimate is not the true cost because, as testimony establishes, Olson did not get his vehicle repaired by the establishment that issued the Estimate. The true cost, Petitioner argues, must be what Olson actually incurred.

In opposition, Respondent argues that the finding that damages exceeded \$1,000 is supported by the evidence. Specifically, Respondent notes the Decision references the Accident Report, testimony from Petitioner, testimony from Olson, and the Estimate. Respondent also argues the Estimate alone is sufficient to establish the damages.

Even under independent judgment, the Court affords a significant degree of deference to the agency on review. Unless it can be demonstrated by a petitioner that the agency's actions are not grounded upon any reasonable basis in law or any substantial basis in fact, the courts should not interfere with the agency's discretion or substitute their wisdom for that of the agency. (Bixby, supra, 4 Cal.3d at 150-151; Bank of America v. State Water Resources Control Board (1974) 42 Cal. App.3d 198, 208.)

Petitioner devotes most of her briefing attacking the Estimate and its reliability. But the record contains multiple, independent sources of evidence supporting the conclusion that the damage to Olson's vehicle exceeded \$1,000, and Petitioner identifies no contrary evidence. The Hearing Officer relied on the Accident Report, testimony from Petitioner, testimony from Olson, and the Estimate. (AR 4-5.) The Accident Report indicated damage in excess of \$1,000. (AR 11.) Olson likewise testified that the damage exceeded \$1,000. (AR 29 ["HEARING OFFICER TIJERO: Okay. And it was over \$1,000, correct? [¶] JEREMY OLSON: Yes."].) The Estimate placed the damage at approximately \$2,306.17. (AR 13-14.) Petitioner challenges only the Estimate, but even if the Court were to disregard it entirely, which it does not, Olson's testimony and the Accident Report stand unrebutted and are unaffected by the concerns Petitioner raises. Petitioner points to no evidence

suggesting the damage was less than \$1,000, nor does she meaningfully grapple with the fact that the evidence other than the Estimate could itself provide a sufficient factual basis for the Hearing Officer's conclusion.

Accordingly, Petitioner has not met her burden to show the Decision was not supported by the weight of evidence.

V.

Conclusion

The petition for administrative mandamus is DENIED.

Pursuant to Local Rule 3.231(n), respondent Department of Motor Vehicles shall prepare, serve, and ultimately file a proposed judgment. The Court sets a Non-Appearance Case Review for August 6, 2026.

Date: July 21, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should

arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Petitioner raises several new arguments for the first time on reply, including expanded theories about due process, new assertions about the significance of the hearing officer's refusal to accept additional photo evidence, and new challenges to Respondent's statutory interpretations. Because these arguments do not appear in Petitioner's opening brief and Respondent has had no opportunity to respond, the Court will not analyze them at any length here.

[2]

All further statutory references are to the Vehicle Code unless otherwise stated.

[3]

Petitioner also argues that she had no opportunity to object to the Estimate as evidence because she was not provided the evidence beforehand and was not given a chance to object at the hearing. The record, however, shows that the Estimate was introduced during the hearing when Petitioner was present. (AR 25.) That was the appropriate moment for her to raise any objection. Petitioner appears to rely on the belief that the Hearing Officer required to expressly invite objection before Petitioner could make one, but she cites no authority supporting such a requirement, and the Court is not aware of any.